

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 21, 2026 TIME: 8:30 A.M.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff demonstrated he served the discovery at issue on May 20, 2026. Defendant has not provided any responses. (Hilliard Declaration, ¶¶ 2-4.)

Sanctions are imposed against defendant in the amount of \$1,060.00, payable no later than August 14, 2026. (Code Civ. Proc., § 2033.030.)

No. 25CV02439

BANK OF AMERICA, N.A. v. GALLI

PLAINTIFF’S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED

The motion is granted.

This is a collections case. Plaintiff seeks \$14,114,29. Defendant answered on August 29, 2025.

On October 30, 2025, plaintiff served requests for admission set one, on defendant, attached to the declaration of Michalea Cox, as Exhibit 1. Plaintiff states defendant has failed to respond to the requests. (Decl. of Cox at ¶ 3.) The requests were served on defendant at 222 El Camino Rd. #B, Scotts Valley, CA, which is the same address defendant used when filing her answer. Defendant did not file an opposition to this motion.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

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Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Ms. Cox as Exhibit 1, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.